

HEADNOTE

“The scope of the dispute brought before the Court is incontestably governed by the principle that the parties define the subject-matter of the dispute, a general principle of law which is reiterated in Art. 76(1) of the UPC Agreement and which, moreover, allows the claimant in the main action to exclude certain acts of infringement in order to avoid the inconvenience of parallel jurisdictions between the UPC and national courts during the transitional period provided for in Art. 83 of the Agreement ("carve out"). However, this principle cannot restrict a defendant in its challenge to the validity of the European patent which is being asserted against it since no legal text that is binding upon UPC law expressly states such a restriction. It is not necessary to apply Art. 71c for the UPC to be governed by the Brussels Ibis. Art. 29 to 30 of the Brussels Ibis are directly applicable to the UPC. Moreover, Art. 31 of the UPC Agreement governing its international jurisdiction clearly states: "The international jurisdiction of the Court shall be established in accordance with Regulation (EU) No 1215/2012".”

COURT
Local Division in Paris

PROCEEDINGS
Infringement action and
Counterclaim for revocation

PATENT
EP3435866

SYSTEMS AND METHODS FOR
DISPLAY DEVICE AND SENSOR
ELECTRONICS UNIT
COMMUNICATION

KEYWORDS

Infringement action with counterclaim for re...

jurisdiction on revocation request by count...

parallel jurisdiction and related actions

invention related to analyte monitoring syst...

principles for claim interpretation

novelty (yes)

inventiveness (no)

auxiliary request

added subject-matter (no)

Article 76 Basis for decisions and right to be heard

SUMMARY

The Local Division in Paris ruled on a counterclaim for revocation. The patent at issue relates to systems and methods for display device and sensor electronics unit communication. According to the headnotes of the decision, parties define the scope of a dispute as a general principle of law. Article 76(1) of the UPC Agreement reinforces this principle and allows claimants to exclude certain infringement claims. This exclusion avoids parallel proceedings between the UPC and national courts during the transitional period under Article 83. However, this principle cannot restrict a defendant's right to challenge the patent's validity. The defendant can raise validity challenges regardless of how the claimant has framed the dispute. Additionally, no binding legal text expressly restricts the defendant's entitlement to do so. Further, Article 71c of the UPC Agreement need not apply for Brussels Ibis rules to govern the Court. Articles 29 to 30 of Brussels Ibis are directly applicable to UPC proceedings. In particular, Article 31 of the UPC Agreement explicitly